



Placement and Residential Licensing Unit

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.682.8590 F: 501.683.6060 TDD: 501.682.1550

Notice of Serious Incident

Case Number: 030176

Date of Incident: 6/1/2025

Date Received: 6/1/2025

Facility Name: Millcreek of Arkansas PRTF

Facility Number: 233

Incident Type: Licensing

Report Description: Av is a 13yo who currently resides at Millcreek Behavioral Health. AO are staff members at Millcreek Behavioral Health Habilitation Center. I work for Texas DFPS and recently received a concern from a Texas CASA (guardian ad litem) for the resident. Resident was placed at the Millcreek Behavioral Health habilitation center on 3/17/2025. The concerns are that there is chemical restraint used at the facility, and that the CASA was not allowed to see the youth or the youth's living quarters during an on-site visit. There are concerns with the facility's cleanliness, the facility's lack of supervision that leads to altercations between the residents, and a staffing ratio concern.

Interim Action Narrative:

Narrative:

Licensing Narrative: 6/2/25-Reviewed for licensing concerns. Visit scheduled for this week depending on car availability. 6/3/25-No state car. Visit scheduled for 6/4/25. Phone call made to the CASA worker and a voicemail was left requesting a return call. 6/4/25-Facility visited. No citations. Complaint unfounded. 6/4/2025, case and documentation reviewed. Resident interviewed and living quarters observed. Complaint unfounded by licensing, Approved by Program Coordinator. Case complete.



Division of Child Care & Early Childhood Education

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521 Visit Compliance Report

Licensee: Millcreek of Arkansas PRTF

Facility Number: 233

Licensee Address: 1828 INDUSTRIAL DR
FORDYCE AR 71742-7110

Licensing Specialist: Clayton DeBoer

Person In Charge: Mitzy Reynolds

Record Visit Date: 6/4/2025

Home Visit Date: 6/4/2025

Purpose of Visit: Complaint Visit

Regulations Out of Compliance:

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Narrative:

Facility visited from 9:30AM to 11:30AM for Licensing Complaint Case #030176 received on 6/1/2025.

Census: 159.

Staff to resident ratio sheets for the month of May 2025 provided to Licensing and reviewed. Resident 1 resides in Pebble Creek. Staff to resident ratio ranged from 3:13 to 3:17, all within ratio. All chemical restraints for Resident 1 requested. No documentation could be provided due to Resident 1 was not given a chemical restraint for his duration at facility.

Pebble Creek, Resident 1's sleeping quarters and living day area observed to be clean, safe, and in good repair. Bathroom was clean and sanitary with functioning sink, shower, and toilet. Client rights and emergency diagram observed.

Resident 1 interviewed who voiced no concerns other than wanting to know why he couldn't have his MP3 player. He stated that some staff were nice, and that he felt safe around all staff and felt comfortable telling them if he felt unsafe. Resident 1 stated that he recently went on an outing where he saw a baby alligator and got to eat sushi. He stated that in 5 days he is discharging and going back to Texas. Resident 1 was reminded by facility administration the rules of MP3 player which he seemed receptive to.

Licensing regulations reviewed:

905.11: Chemical restraint shall be used only if ordered by a physician. A chemical restraint is an emergency behavioral intervention that uses pharmaceuticals by topical application, oral administration, injection, or other means to modify a child's behavior. Prescribed treatment medications that have a secondary effect on the child's behavior are not considered a chemical restraint.

907.3: Staff to child ratio shall be at least one to six (1:6) during waking hours and one to eight (1:8) during sleeping hours.

911.6: All buildings and furnishings shall be safe, clean, and in good repair.

912.1-6: The facility shall provide a bathroom for the children which is clean and sanitary with an adequate supply of hot and cold running water, soap, towels, and tissue. There shall be separate bath and toilet facilities for males and females. There shall be a separate toilet, bathtub or shower, and sink for each six (6) children.

Licensing complaint Case #030176 has been investigated and determined to be **unfounded** as evidenced by: Staff to client ratio for Resident 1's cottage was within ratio. No buildings concerns observed in Resident 1's sleeping quarters, living quarters or bathroom. No chemical restraint has been administered on Resident 1 for his duration at facility.

******* Pursuant to A.C.A. § 9-24-406(e)(3-4): If you believe that the Department's notice of noncompliance is in error, you may ask for reconsideration. The request for reconsideration must be in writing and delivered to the Department by certified mail within twenty (20) business days of receipt of the notice of noncompliance. The request must specify the parts of the notice that are alleged to be in error, explain why you believe those parts are in error, and include documentation to support the allegation of error. Once received the Department shall issue a decision on your request within twenty (20) days after receipt of the request.**

Provider Comments:

CCL Staff Signature :

Date: 6/4/2025



Provider Signature :



Date: 6/4/2025